International Labour Organization

Recruitment experiences of South Asian migrant workers in Jordan's garment industry

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Fundamentals Principles and Rights at Work Branch (FUNDAMENTALS)
International Labour Organization (ILO)

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EXECUTIVE SUMMARY

The rapid expansion of Jordan's garment industry over the past two decades has been accompanied by a large increase in the industry's migrant workforce. Accompanying this rise in the number of migrants, most of whom are from South Asia, has been the growing use of private employment agencies that specialize in recruiting workers in their countries of origin and facilitating their migration to Jordan to work in the garment factories. This has presented the Jordanian authorities, as well as those in sending countries, with challenges in regulating labour recruitment and particularly preventing recruitment agencies from charging excessive or unauthorized recruitment fees from migrants seeking work in Jordan's garment factories.[1]

To further explore these issues, the ILO Fundamental Principles and Rights at Work Branch (FUNDAMENTALS),[2] which has been researching recruitment practices in Jordan's garment industry, recently teamed up with the ILO Better Work Programme[3] to undertake a quantitative survey covering 23 garment factories in that country. In addition, given the limitations of a quantitative survey in investigating recruitment procedures and relationships with third-party labour contractors in migrants' home countries, FUNDAMENTALS also engaged in a qualitative research effort to gather and analyse the personal stories of migrant workers in Jordan's garment sector.

1 The terms "recruitment fees" and "related costs" refer to any fees or costs incurred in the recruitment process in order for workers to secure employment or placement, regardless of the manner, timing, or location of their imposition or collection.

2 ILO FUNDAMENTALS Branch website available at: **www.ilo.org/fundamentals**.

3 ILO Better Work Programme website available at: **www.betterwork.org**.

The data for the qualitative study was collected between July and October 2015 from 40 in-depth interviews with migrant garment workers from three countries – Bangladesh, Nepal, and Sri Lanka – as well as seven focus groups (including one comprised of local Jordanian workers from the factories) and a large group discussion involving Nepalese migrant workers. Research questions sought to determine the nature of the recruitment process for migrant garment workers in Jordan including whether the workers had been coerced, deceived, and/or paid illegal or otherwise excessive fees to gain employment in the factories. It also examined whether there are significant differences in how migrant workers are treated depending on their country of origin.

Through gathering and analysing the personal stories of workers from the three countries, the research uncovered diverse experiences ranging from expressions of satisfaction with the recruitment process to cases in which workers reported debt bondage, contract deception, collection of recruitment fees or related costs, forced overtime, and passport confiscation. In addition, the quantitative data showed that the recruitment process is troublesome for many migrant workers, as nearly half of factories surveyed (47 per cent) had workers who reported being charged unauthorized recruitment fees by agents in violation of international standards.

While the research found that the recruitment experience varies significantly between Bangladesh, Nepal, and Sri Lanka, it also found a number of elements that were present in some way across all three countries. These include the key role that social networks play in the recruitment and migration processes, particularly with regard to how migrating workers learned about opportunities abroad and how they obtained money to pay the costs, as well as the often-striking lack of knowledge that the migrating garment workers had about the provisions of the employment contracts they signed.

Additionally, the study found indications that private employment agencies may behave differently with workers depending on the extent to which the recruiting factory monitors their conduct for compliance with international standards on fair recruitment, as evidenced in statements by migrant workers at separate factories who had used the same recruitment agency but reported very different experiences. And while the quantitative research showed differences among the countries with regard to the level of recruitment fees migrant workers were paying, the qualitative research indicates that proximity to major urban centres may be a more determinative factor because migrant workers living in outlying rural areas are more likely to pay a sub-recruitment agent to submit their paperwork to a big-city recruitment agency.

In light of these and other findings, in September 2016 the ILO's Governing Body convened a tripartite Meeting of Experts to develop global guidelines on fair recruitment. An important outcome of the meeting was agreement that *"no recruitment fees or related costs should be charged to, or otherwise borne by, workers or jobseekers",* paragraph 7 of the *General Principles and Operational Guidelines for Fair Recruitment*.[4] Contrary to these guidelines and to the provisions of ILO Private Employment Agencies Convention, 1997 (No. 181), many countries of origin still allow workers to be charged fees, though these are often capped. The outcome document of the Tripartite Meeting of Experts was adopted

4 ILO (2016). *General Principles and Operational Guidelines for Fair Recruitment*, Fundamental Principles and Rights at Work Branch (FUNDAMENTALS) and Labour Migration Branch (MIGRANT), Geneva. Available at: **www.ilo.org/fundamentals/global/topics/fair-recruitment/WCMS_536755/lang--en/index.htm**.

during the proceedings of the 328th session of the Governing Body in November 2016.

The concept of fair recruitment goes well beyond the issue of recruitment fees. The *General Principles* that emerged from the Meeting of Experts cover issues ranging from the alignment between recruitment practices and market needs and access to information to freedom from coercion, the freedom to terminate contracts, and the enforcement of labour regulations. This working paper is intended to enhance knowledge on international recruitment practices in Jordan to facilitate the translation of the *General Principles* from policy to practice. It also aims to stimulate debate and further discussion on effective action to foster fair recruitment practices worldwide, to reduce the costs of labour migration, and to enhance development outcomes for migrant workers and their families in countries of origin and destination.

General Principles and Operational Guidelines for Fair Recruitment

1. Recruitment should take place in a way that respects, protects and fulfils internationally recognized human rights, including those expressed in international labour standards, and in particular the right to freedom of association and collective bargaining, and prevention and elimination of forced labour, child labour and discrimination in respect of employment and occupation.

2. Recruitment should respond to established labour market needs, and not serve as a means to displace or diminish an existing workforce, to lower labour standards, wages, or working conditions, or to otherwise undermine decent work.

3. Appropriate legislation and policies on employment and recruitment should apply to all workers, labour recruiters and employers.

4. Recruitment should take into account policies and practices that promote efficiency, transparency and protection for workers in the process, such as mutual recognition of skills and qualifications.

5. Regulation of employment and recruitment activities should be clear and transparent and effectively enforced. The role of the labour inspectorate and the use of standardized registration, licensing or certification systems should be highlighted. The competent authorities should take specific measures against abusive and fraudulent recruitment methods, including those that could result in forced labour or trafficking in persons.

6. Recruitment across international borders should respect the applicable national laws, regulations, employment contracts and applicable collective agreements of countries of origin, transit and destination, and internationally recognized human rights, including the fundamental principles and rights at work, and relevant international labour standards. These laws and standards should be effectively implemented.

7. No recruitment fees or related costs should be charged to, or otherwise borne by, workers or jobseekers.

8. The terms and conditions of a worker's employment should be specified in an appropriate, verifiable and easily understandable manner, and preferably through written contracts in accordance with national laws, regulations, employment contracts and applicable collective agreements. They should be clear and transparent, and should inform the workers of the location, requirements and tasks of the job for which they are being recruited. In the case of migrant workers, written contracts should be in a language that the worker can understand, should be provided sufficiently in advance of departure from the country of origin, should be subject to measures to prevent contract substitution, and should be enforceable.

9. Workers' agreements to the terms and conditions of recruitment and employment should be voluntary and free from deception or coercion.

10. Workers should have access to free, comprehensive and accurate information regarding their rights and the conditions of their recruitment and employment.

11. Freedom of workers to move within a country or to leave a country should be respected. Workers' identity documents and contracts should not be confiscated, destroyed or retained.

12. Workers should be free to terminate their employment and, in the case of migrant workers, to return to their country. Migrant workers should not require the employer's or recruiter's permission to change employer.

13. Workers, irrespective of their presence or legal status in a State, should have access to free or affordable grievance and other dispute resolution mechanisms in cases of alleged abuse of their rights in the recruitment process, and effective and appropriate remedies should be provided where abuse has occurred.

Source: ILO (2016). General Principles and Operational Guidelines for Fair Recruitment, Fundamental Principles and Rights at Work Branch (FUNDAMENTALS) and Labour Migration Branch (MIGRANT), Geneva. Available at: www.ilo.org/fundamentals/ global/topics/fair-recruitment/WCMS_536755/lang--en/index.htm.

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CHAPTER 1

INTRODUCTION

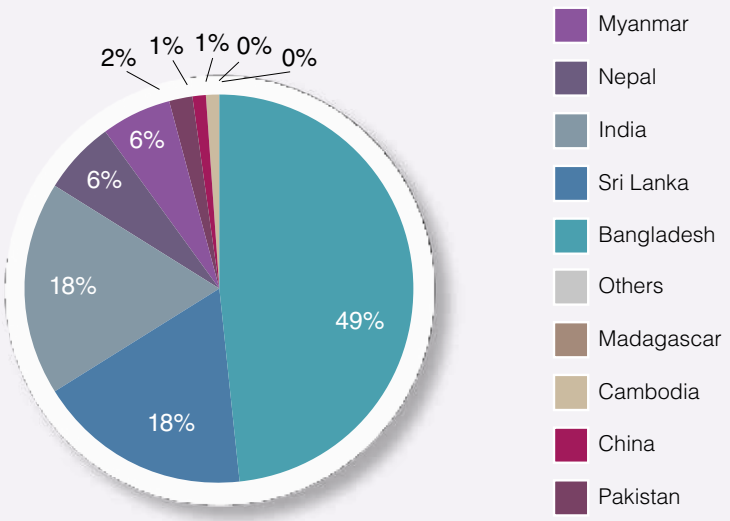
Jordan's garment industry has enjoyed enormous growth since the country was granted preferential duty free and quota free access to the United States market, first under the terms of the Qualified Industrial Zones (QIZ) agreement in 1996 and then under the Jordan-United States Free Trade Agreement (JUSFTA) that was approved in 2001. In 2015, the value of Jordan's garment exports exceeded US$ 1.5 billion, accounting for 17 per cent of the country's total exports. The industry saw a 6 per cent increase in apparel exports in 2016.[5]

Accompanying the expansion of Jordan's garment production and exports has been an increase in the industry's use of migrant labourers, who now comprise more than three-quarters of its 60,000 person workforce (ILO & IFC, 2015). The vast majority of these migrant workers come from South Asian and South-East Asian countries – most notably Bangladesh (49 per cent), Sri Lanka (18 per cent), and India (18 per cent)[6] – to take low-wage jobs with long working hours (ILO & IFC, 2017). Workers are also recruited from Nepal, Myanmar, Pakistan, China, Cambodia and Madagascar (**Figure 1**). As in most apparel industries, women make up the majority of the labour force (about 70 per cent) in Jordan's garment sector. However, labour migration requirements in both Jordan and the sending countries often control the inflow of male and female workers – for instance, the Indian and Pakistani governments allow only men to apply for jobs in Jordan (ILO & IFC, 2017).

5 ILO & International Finance Corporation (IFC) (2015). *Better Work Jordan: Garment Industry 7th Compliance Synthesis Report*, Better Work Programme, Geneva. Available at: **https://betterwork.org/blog/portfolio/better-work-jordan-garment-industry-7th-compliance-synthesis-report/**

6 ILO & IFC (2017). *Better Work Jordan Annual Report 2017: An Industry and Compliance Review*, Better Work Programme, Geneva. Available at: **http://betterwork.org/blog/portfolio/better-work-jordan-annual-report-2017-an-industry-and-compliance-review/**.

Figure 1: Country of origin of workers in Jordan's garment sector



In response to the need for improved regulation, the Government of Jordan set up a programme of action to improve labour administration and compliance, including reform of the Ministry of Labour's Inspection Directorate and the creation of a joint inspection team from the Ministries of Labour and Interior that specializes in detecting human trafficking. Another key component of this national response was the creation in 2008 of Better Work Jordan, a partnership between the ILO and the International Finance Corporation (IFC) to improve the garment industry's competitiveness by enhancing economic performance and improving labour compliance. In recent years, legal reforms and the Better Work Jordan programme's provision of services at the enterprise level has helped bring measurable improvement in compliance with national law and ILO labour standards in most of the country's garment factories. Nevertheless, some cases of labour exploitation are still reported, including cases of deceptive or abusive recruitment practices.

The study looks more closely at the recruitment practices of South Asian migrant workers in the Jordanian Garment Sector, especially the incidence of debt bondage, coercive recruitment, fee charging, and contract deception. It aims to develop a better understanding of some of the factors behind these possible abusive workplace practices using a mixed-methods approach, gathering quantitative data from garment factories and analysing the personal stories of migrant workers from Bangladesh, Nepal, and Sri Lanka who have been through this process in the recent past. It also briefly compares the recruitment experience of migrant workers with those of Jordanian nationals working in the industry. The results of the study will feed into the work of the ILO *Fair Recruitment Initiative,*[7] which aims to help prevent human trafficking and forced labour, protect workers from abusive and fraudulent practices during the recruitment process, and reduce the cost of labour migration to enhance development outcomes resulting from worker migration. Launched in 2014, this multi-stakeholder initiative puts social dialogue at the centre and is implemented in close collaboration with governments, representative employers' and workers' organizations, the private sector and other key partners.

7 See ILO Fair Recruitment Initiative website available at: www.ilo.org/fairrecruitment.

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2 CHAPTER METHODOLOGY

This study reports on the qualitative and quantitative data collected through a combination of survey methods, including in-depth semi-structured interviews, focus groups and a discussion group. The fieldwork was conducted between July and October 2015.

The broad research questions were:

1. What is the nature of the recruitment process for South Asian migrant garment workers employed in Jordan, and what are its common practices?

2. Have these workers been coerced or deceived during the recruitment process though the collection of high recruitment fees, physical or other threats or violence, and/or contract substitution?

3. Are there differences in these practices between the three different countries of origin and between different skills-levels of workers?

2.1 Quantitative survey

Between November 2014 and October 2015, in collaboration with the ILO-IFC Better Work programme, quantitative survey data was collected from 641 respondents in 23 factories in and around Amman, Jordan. In each factory, computer-based surveys were conducted with: (1) four members of the management staff, such as the General Manager, the Chief Financial Officer, the

Production Manager, the Factory Manager, Human Resource Manager and the Industrial Engineer, and (2) 30 workers randomly selected from the factory's roster of production employees. An additional 25 to 30 workers were chosen at random and assigned to a reserve list. The quantitative survey did not target specific workers or groups of workers, and hence the data covered a broad-cross range of nationalities including both migrant workers and Jordanians. Only the qualitative data was drawn specifically from a targeted group of migrant workers from Bangladesh, Nepal, and Sri Lanka.

Quantitative survey data was collected using Audio Computer Assisted Self Interview (ACASI) technology. ACASIs consist of a written survey that appears on the screen of a minicomputer with audio supplementation provided through earphones. Participation was voluntary and each participant provided informed consent, having been assured that all responses would be held in confidence. At no time were data files identifiable by the interview subject's name (or employee identification number) or survey responses.

2.2 Qualitative study

2.2.1 Sampling

The sample was selected through a combination of purposive and snowball sampling. The gender composition of the sample was designed to broadly reflect that of Jordan's garment industry as a whole, which is highly feminized. This gender composition is reflected in the sample for Nepalese and Sri Lankan workers. In the case of Bangladeshi workers, the sample is comprised entirely of women because Jordanian garment factories effectively ceased recruiting male Bangladeshi workers in 2010. The small number of male Bangladeshi workers who are currently employed in the factories have been in Jordan since before 2010 and were not of interest to this study as they are less likely to recall their recruitment experiences accurately and, given recent developments in recruiting practices, their experiences are less relevant to this study.

All of the workers who participated in the qualitative study arrived in Jordan during the two to three years preceding the interview, although for five of the interviewees this was the second time they had migrated to Jordan for a job in the garment industry.

2.2.2 Interviews and focus groups

Interviews and focus groups were conducted in the three industrial zones where the vast majority of Jordan's export-oriented garment factories are located: the Al-Hassan Industrial Zone, the Dulayl Industrial Zone, and the Tajamou'at Industrial Zone. Interviews were conducted at the locations listed in **Table 1**.

Given the challenges of accessing migrant garment workers independently of factory management, most of the interviews for the were conducted at the ILO-supported Al-Hassan Workers' Center,[8] a charitable membership organization dedicated to improving quality of life and providing services for workers in Jordan's garment industry. Since its opening in 2014, the centre has *"trained seven regular worker-volunteers from Bangladesh, India, and Myanmar … [and] weekly attendance has grown to over 1,000 workers. Both the canteen and computer lab*

8 ILO (2015). *Building Hope and Opportunity: The Al Hassan Workers' Center.* Video available at: **www.youtube.com/watch?v=G-_oyb4sD94**.

Table 1: Location of interviews and focus groups

	INTERVIEWS			FOCUS GROUPS		
	Female	Male	Total	Female participants	Male participants	Number of groups
Al-Hassan Industrial Zone Workers' Center	26	8	**35**	15	5	**3**
Office of the General Trade Union of Workers in Textile, Garment and Clothing Industries in Jordan in Al-Hassan Industrial Zone	-	-	**-**	10	5	**2**
Office of the General Trade Union of Workers in Textile, Garment and Clothing Industries in Jordan in Tajamou'at Industrial Zone	2	-	**2**	7	-	**1**
Health clinic of a garment factory in Dulayl Industrial Zone	1	-	**1**	-	-	**-**
Public spaces in Tajamou'at Industrial Zone	2	-	**2**	-	-	**-**
Dormitory of a garment factory in Al-Hassan Industrial Zone	-	-	**-**	40	-	**1***
Sample room of a garment factory in Dulayl Industrial Zone	-	-	**-**	-	5	**1**
Telephone interview	1	-	**1**	-	-	**-**

**Large Group discussion*

have steady weekday use and heavy use on Fridays".[9] While the study benefited from the centre's status as a trusted meeting place for a large number of migrant garment workers, it is important to note the following biases associated with sampling conducted there:

- Workers who frequent the workers' centre are more likely to be employed in a factory or living in accommodation that is near the centre.
- Workers who frequent the workers' centre are more likely to be actively involved in organized communal activities, such as sports and cultural activities, as the workers' centre facilitates their involvement in such activities by providing the dedicated time and space. This may be associated with having a stronger and/or more supportive social network than migrant workers who do not frequent the centre.

To address these issues and ensure a greater diversity of respondents, the purposive sample was complemented with a snowball sample whereby interviewees were asked to nominate further interviewees from their social network who did not regularly frequent the centre.

9 ILO & IFC (2014). *Better Work Jordan: Garment Industry 6th Compliance Synthesis Report*, Geneva. Available at: https://betterwork.org/jordan/wp-content/uploads/6th-CSR-draft-FINAL.pdf.

2.2.3 Individual interviews

Forty interviews were conducted with Bangladeshi, Nepalese, and Sri Lankan migrant garment workers employed in Jordan (Table 2). Thirty-nine of the interviews were conducted face-to-face and one was conducted via telephone. Interviews were conducted by a researcher and an interpreter whose native language was the same as that of the worker. All but one of the interviews were audio recorded[10] and the researcher was assisted by a note-taker during some of the interviews. Interviews were based on a set of semi-structured interview guidelines (see the Appendix) which were piloted during the first four interviews.

These countries of origin were selected as they show different approaches to regulating recruitment and represent key countries of origin in the garment sector in Jordan. Nepal was also selected as the findings of this study are informing the development of a "Fair Recruitment Pilot" for the garment sector in Jordan.[11] The pilot intervention has been designed in collaboration with Better Work Jordan and the social partners to eliminate deceptive and coercive recruitment practices in the apparel industry in Jordan, reduce the vulnerability of migrant workers to labour exploitation, and provide workers with decent work opportunities.

Table 2: Composition of interview sample by nationality and gender

	NUMBER OF INTERVIEWEES	GENDER COMPOSITION (FEMALE/ MALE)
Bangladeshi workers	14	14 female – 0 male
Nepalese workers	13	9 female – 4 male
Sri Lankan workers	13	9 female – 4 male
Total	**40**	**32 female – 8 male**

10 One of the interviewees did not consent to having her interview recorded.

11 See ILO Fair Recruitment Initiative website available at: www.ilo.org/fairrecruitment.

2.2.4 Focus groups and large group discussion

The interviews were complemented by seven focus groups (see Table 3), each consisting of five to eight workers. All focus group sessions were audio recorded and facilitated by a researcher with the assistance of an interpreter whose native language was that of the workers. A single large group discussion was conducted with 40 newly arrived female Nepalese workers in their dormitory. Although the group setting prevented us from discussing individual workers' experiences in detail, it was nonetheless a unique opportunity to collect data from a large number of workers who had recently gone through the recruitment process and, in this case, had arrived in Jordan shortly after the devastating earthquake which hit their country in April 2015.

2.3 Challenges

The interviews, focus groups, and group discussion conducted for this study generated rich data on the recruitment experiences of South Asian migrant workers in Jordan, covering a host of topics that included various sensitive issues. Although some interviewees and focus group participants were guarded in their responses, others were very forthcoming and willingly shared information about illegal practices by employers and recruitment agencies including deceptive recruitment practices, passport confiscation, and forced overtime. Others informed us of illegal practices that they themselves had participated in, such as the falsification of identity documents in order to deceive employers about their age.

Table 3: Composition of focus groups by nationality and gender

	NUMBER OF FOCUS GROUPS	NUMBER OF PARTICIPANTS	GENDER COMPOSITION (FEMALE/ MALE)
Bangladeshi workers	2	14	14 female – 0 male
Nepalese workers	1*	5	0 female – 5 male
Sri Lankan workers	2	13	8 female – 5 male
Jordanian workers	2	15	10 female – 5 male
Total	**7**	**47**	**32 female** (68%) – **15 male** (32%)

* A large group discussion with 40 female Nepalese workers was also conducted as described above.

The research team also faced a number of challenges in collecting the data. For one, many of the participants (ILO & IFC, 2015) were understandably reluctant to give up more than 60 to 90 minutes of their free time to participate in interviews or group discussions. On top of this, language barriers necessitated the use of consecutive interpretation, which slowed the interview and discussion process and reduced by about half (to about 30 to 40 minutes) the amount of substantive discussion that could take place regarding workers' own experiences. The typical length of focus groups was around one hour, once interpretation is factored out.

Another major challenge faced in data collection was the difficulty in accessing workers in the Tajamou'at and Dulayl industrial zones. In contrast to Al-Hassan, neither of these zones has an appropriate venue that is free from employer control and that can facilitate access to workers and provide a private space to meet them. Although the research team was able to use the office of the General Trade Union of Workers in Textile Garment & Clothing in the Tajamou'at Industrial Zone to conduct interviews and focus groups, several workers were unwilling to meet us at this location out of concern that their employer might discover they had been visiting the union office and suspect them of lodging complaints against the factory.

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3 CHAPTER

FINDINGS

Through the process of gathering and analysing the personal stories of workers from Bangladesh, Nepal, and Sri Lanka, the research uncovered diverse experiences ranging from cases in which workers expressed their satisfaction with the recruitment process to those in which workers reported debt bondage, contract deception, collection of recruitment fees or related costs, and passport confiscation.[12]

3.1 Recruitment fees

Some key findings on the recruitment fees and related costs reported by interviewees from the three countries are provided in **Table 4**.

12 According the Garment Industry 7th Compliance Synthesis Report published by Better Work: "Fifteen factories were non-compliant in the late 2009-10 period and only four were found non-compliant in 2015. One of these factories has since been shut down by the government. The remaining three factories had denied workers access to their passports. Explanations of this are related to keeping passports in order to process workers residency documents or for security reasons. Workers have not been informed how to access their passports, and would prefer to keep them themselves. One of the factories that was holding all migrant workers passports for over 10 months was closed down by the Jordanian government due to their high numbers of violations, demonstrating the government's willingness and ability to intervene when evidence of forced labour exists".

Table 4: Recruitment fees for South Asian migrant garment workers in Jordan

Country	Range of official recruitment fees and related costs paid (US$)	Range of other fees paid to informal labour recruiters (bribes and/or false documents (US$)	Recruitment fee regulations in country of origin
Bangladesh	$178 - $319[17]	$0 - $1020	According to the Overseas Employment and Migrants Act 2013 (Act No. VLVIII of 2013) the Government may "prescribe the ceiling of the cost of migration to be charged for the purpose of recruitment and overseas employment" (Section 21). Receiving recruitment fees through deception is punishable by five years' imprisonment and a penalty of 100,000 Bangladeshi Taka, approximately $1,200 (Section 31).
Nepal	$92 - $259[18]	None of the workers in the sample incurred these kinds of expenses although some reported that other Nepalese workers they know paid sub-recruiters up to $566 to come to Jordan (amount includes official fees which sub-recruiters pay directly to recruitment agencies).	According to the provisions of the Foreign Employment Act (2007), the Government may "specify the upper limit […], including the service fee and promotional costs [i.e. visa fee] that the institution can collect from each worker" (Article 24). Charges to the worker in excess of those amounts stipulated are deemed an offence (Article 53), must be returned to the worker and are subject to a fine of Nepalese Rupees (NPR) 100,000 (approx. $930). The upper limit currently in place for workers migrating to Jordan has been set at NPR 20,000 (approx. $184; reduced from NPR 70,000 in 2004). The practice of some recruitment agencies, however, is to charge as low as NPR 10,000 (approx. $92).
Sri Lanka	$85 - $700[19]	None of the workers in the sample incurred these kinds of expenses	It is illegal for recruiters to charge fees to workers. This is an offence under Sections 34 and 64 of Sri Lanka Foreign Employment Bureau Act No. 21 of 1985. Under section 51 of the same Act (amended in 1994 and 2009), however, fees are applied to the recruitment of persons for employment outside Sri Lanka who "shall pay the Bureau such sum as may be determined by the Minister […] for the category under which such employment falls…" (1994). Concerning fees payable to the recruitment agency (see Amendment of 2009), the recruitment agency may charge the "actual expenses to be incurred, in addition to the registration fee from any recruit, after having obtained prior approval for the same from the Bureau. Where the Bureau believes that the expenses requested are unreasonable, the Bureau may refuse to grant approval…"

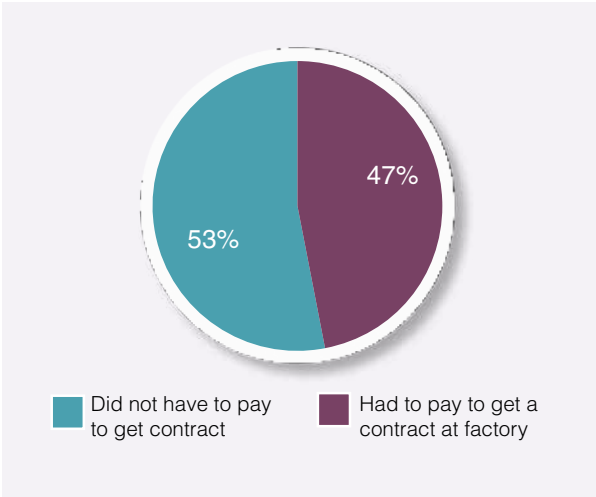
13 This amount includes recruitment fees paid to BOESL, passport fees, medical check-up fees, and finger printing fees. It excludes an amount of 10,000 BDT ($128) which some interviewees paid to BOESL in Bangladesh on the understanding that the amount would be refunded three months after they arrived in Jordan (the amount was indeed refunded).

14 This amount includes recruitment fees paid to private employment agencies in Nepal, medical check-up fees, and passport fees. It excludes 700 NPR ($7) paid by some workers for training, which is later reimbursed by the Nepalese government.

15 This amount includes recruitment fees paid to private employment agencies in Sri Lanka and medical check-up fees. It does not include passport fees, as workers in the sample could not remember the amount paid for these fees.

The quantitative survey found that the recruitment process for migrant workers remains a major challenge as 47 per cent of workers of varying nationalities were found to have paid fees to recruitment agents (see Figure 2).

Figure 2: Did you pay to get job?



3.2 General trends in the recruitment process

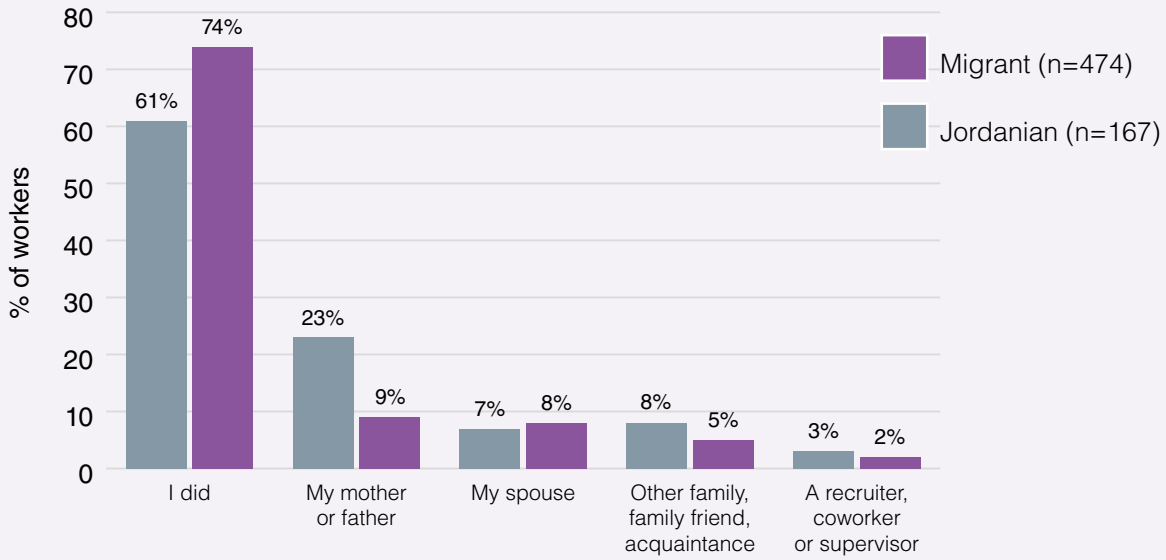
The recruitment experience varies significantly between workers from each of the three countries studied, but it is important to note that there are also significant similarities regardless of the country of origin. Key cross-country trends include:

- **Workers' access to information –** Among the most striking findings from the qualitative study was the significant proportion of workers interviewed who had little or no knowledge about what was covered by the recruitment fees/costs that they had paid or the contents of the employment contract that they had signed.

Although the qualitative methodology of the current study does not allow us to make generalizations about the extent to which this is reflective of the wider population of migrant garment workers in Jordan, it is notable that many of the workers who participated: (1) could not provide a breakdown of what these recruitment fees/costs covered (e.g. medical tests, insurance); (2) did not know who had paid for their airline ticket to Jordan, and (3) could not provide any information on the contents of their employment contract other than the term of employment and basic salary. Indeed, several interviewees stated that they had signed the contract without reading it or asking about its contents. Moreover, several interviewees believed that the plane ticket for them to come to Jordan had been paid from the money they paid to the recruitment agency, despite the fact that they had paid only $200 or less. The extent to which there is lack of worker awareness around these issues is an important question for future quantitative research.

- **Nature and strength of worker's social network –** In all three countries, social networks play a key role in the recruitment and migration process. Many of the workers interviewed learned about the opportunity to work in Jordan's garment industry through colleagues, acquaintances, and relatives who had previously migrated to work in the industry, or who have relatives who did. In some cases, this was a close friend or family member, and respondents expressed that receiving first-hand information from a trusted source about the working conditions helped them make the decision to take the bold step of migrating to Jordan. The worker's social network – especially close relatives – can also play an important role in the migration process by providing access to capital (whether as a gift or loan) that allows prospective migrant workers to cover the costs of

Figure 3: Who decided for you to come work in this factory?



recruitment without resorting to informal high-interest loans. Despite the influence fo social networks in influencing and often facilitating the migration process, the quantitative data shows that the majority of migrant garment workers took the decision to work in the garment sector on their own (Figure 3).

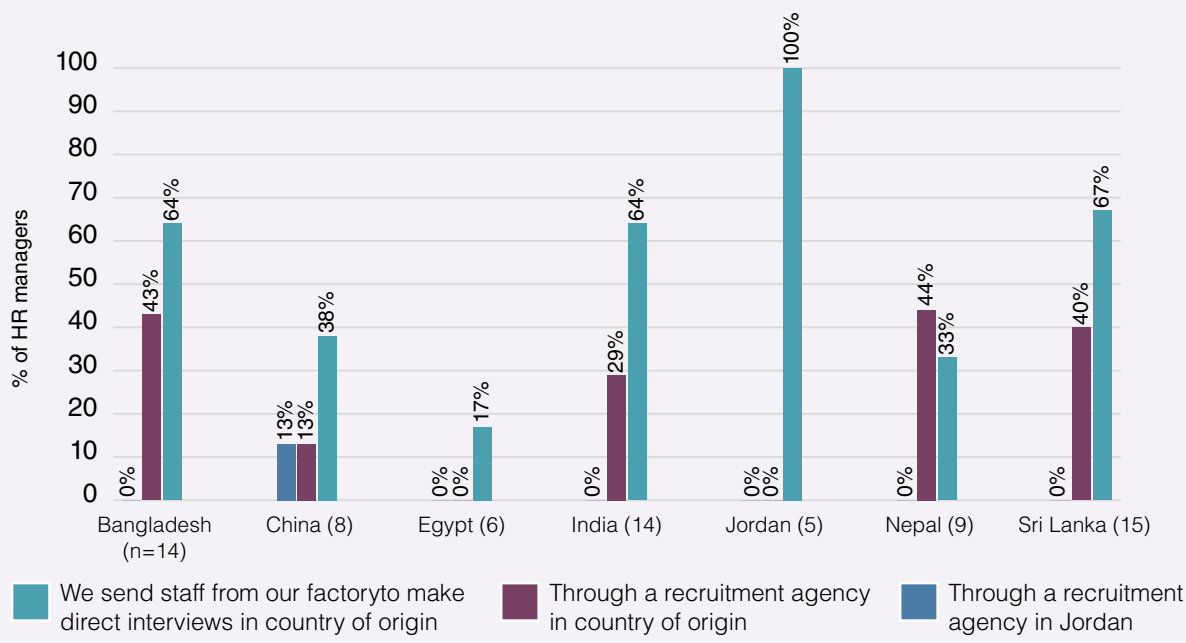
- **Factories' recruitment processes –** The study uncovered significant variation in the reported recruitment-related practices at export-oriented garment factories in Jordan. Despite efforts by the government, buyers, and the ILO to enforce standard procedures for recruitment-related practices, the reported experiences of interviewees reveal significant differences between and among factories: from those that do not even ask newly arrived workers about the recruitment costs they paid, to those who hold special briefing sessions for newly arrived workers and encourage those who have paid more than the standard amount to come forward so they can be reimbursed the cost of recruitment fees by the factory.

The role and impact of the factories themselves in the recruitment process was underscored by the fact that migrant workers at separate factories who had used the same recruitment agency often reported having very different experiences with the recruiter. This indicates that recruitment agencies may behave differently with workers depending on the extent to which the recruiting factory in Jordan monitors their behaviour for compliance with recruitment standards. As will be discussed further in the country by country findings below, there are also variations with regard to factory practices such as passport confiscation and coercion.

The quantitative data shows that the majority of workers are recruited either directly or through a recruitment agency based in the source country, as can be seen in Figure 4. Very few factories operate through agencies based in Jordan.

- **Distance from urban centres –** While the quantitative research suggests that migrant workers from India and Sri Lanka paid the highest recruitment fees of all who

Figure 4: Manager-reported method of recruitment, by country of worker origin



were surveyed, the qualitative research indicated a perception that a prospective migrant worker's place of origin within their own country plays an important role in determining the cost of recruitment. Some interviewees reported that those living in rural areas (especially those that are far from major cities) are more likely to pay a sub-recruitment agent significant amounts to link them to a big-city recruitment agency and to submit the paperwork on their behalf. Some interviewees also perceived prospective workers from distant rural areas as being more likely to use sub-recruitment agents because it is difficult for them to find out about formal recruitment procedures on their own. Interviewees from rural areas themselves cited travel expenses from their homes to large cities (for the purpose of completing formal recruitment procedures) as a significant cost related to migration.

3.3 Country findings

As country of origin is key to how workers experience the recruitment process, detailed findings are presented below on a country by country basis.

Bangladesh

The key reasons given by Bangladeshi workers for choosing Jordan as a migration destination were: (1) it was recommended by people in their social and/or workplace network who had previously been employed in Jordanian garment factories, and (2) recruitment fees were lower than those for other migration destinations.

Workers interviewed cited official recruitment fees ranging from 14,000 BDT ($178) to 25,000 BDT ($319) paid to the public employment service BOESL (Bangladesh Overseas Employment and Services Limited). Those citing fees at the higher end of this range noted that 10,000 BDT (approximately $120) of the amount was refunded several months after they arrived in Jordan. To put this fee in

perspective, the monthly minimum wage for a garment worker in Bangladesh is $68, while the monthly minimum wage for a migrant garment worker in Jordan is $155 (plus meals and accommodation).

Some of the workers covered the cost of these recruitment fees from their own savings or those of their family. However, many of the workers interviewed covered these costs by borrowing the amount from relatives and acquaintances, often without interest but in some cases with interest. Those borrowing money interest-free tended to be borrowing from close relatives, but not all workers had this option available to them. One 21-year-old worker told us that she had borrowed the money to pay the fees from a jeweller after putting up her mother's gold jewellery as collateral. She paid the 23,500 BDT ($299) sum back to the jeweller within two months, paying 2,000 BDT ($25) per month in interest on the loan.

Importantly, several workers reported having paid large sums to an informal recruitment agent (known in Bengali as a *dalal*) to get a job in Jordan's garment industry. One of the workers interviewed was an illiterate 27-year-old woman who decided to migrate to Jordan after hearing from her garment factory colleagues in Bangladesh that she could earn more money by working abroad. With her father's monthly medical bills costing the family 3,300 BDT ($42) per month, she saw migration as an opportunity to alleviate her family's financial difficulties. She chose to migrate to Jordan because she knew several colleagues who had worked at garment factories in Jordan and because the recruitment fees were more affordable than for other countries. The dalal she went to initially asked her for 130,000 BDT ($1,657) to secure her a job in Jordan, then lowered the price to 65,000 BDT ($829). To pay him, she borrowed a total of 60,000 BDT ($765) from three people in her village. The worker informed us that by the time she had finished paying this amount back with interest, she had spent more than 100,000 BDT ($1,274).

Upon arriving in Jordan, a management representative at the factory asked this worker whether she had hired a dalal to get the job. She said no because the dalal had insisted she not to tell anyone about their arrangement. She informed us that the dalal fees and the associated interest payments were a significant burden on her, saying:

> ***"As much as I worked, all the money went to cover the loan and my father's medication."***

Despite this, she prefers her employment situation in Jordan to that in Bangladesh, saying:

> ***"It is better here. They pay the [living] expenses and I can send most of my salary home."***

After finishing her contract, she intends to visit Bangladesh and then return to Jordan to resume working in a garment factory.

This worker claimed that without hiring a *dalal* she would not have passed the practical job interview at BOESL, although many of the workers interviewed claimed that they themselves had not paid a *dalal* to get a job in Jordan. In the words of one 24-year-old female worker:

> *"Thank God that we didn't have to pay anything extra, other people fall into such traps but we fortunately didn't … I was completely new to the process, I went there by myself and I was very nervous and scared, but I took the token and did the interview, and there was no problem at all."*

According to a Bangladeshi translator working in the Human Resources department at one of the factories, many workers do not understand the recruitment procedure in Bangladesh, which is why they seek a *dalal* to help them with the paperwork and the job interview. This highlights how access to information about recruitment processes can shape the workers' migration experiences.

One of the interviewees was a 26-year-old worker who was in Jordan for the second time after having previously completed a contract in a Jordanian garment factory and thereupon returning to Bangladesh. She noted that some workers feel confused during the practical job interview at BOESL because the sewing machine at the interview centre is very fast. The worker claimed that some *dalals* pay interviewers at BOESL a bribe to ensure that their client passes the interview, and that the *dalal* tells these candidates how to identify themselves to the interviewer – for example, by wearing a certain colour of nail polish on a specific finger. Although she said that she herself had not paid to pass the practical interview at BOESL, she claimed to know workers who have.

In addition to payments made to cover the interest on loans or payments to informal recruitment agents, one worker said she had paid a bribe of 10,000 BDT ($127) to get her passport because of her youthful appearance and because her age was not clear on her government documents. Another worker said that she had been 16 years old when she first arrived in Jordan but that she had changed the age on her passport when she was in Bangladesh in order to meet the minimum age requirement for a job in Jordan.[16]

Workers employed in different factories reported varying experiences. The worst practices encountered during the course of the research were described during one of the focus groups. Most of the workers were illiterate and said they had not read the employment contract; instead, it was explained to them verbally at BOESL. According to one worker:

> *"When we came here, it was not like they told us. They told us we do not have to work after 6:30 in the evening, that Friday is our weekly day off and we would get our salaries by the fifth of the month. We would also get food and accommodation, but all the girls who came in our group [four months ago] slept on the stairs for three days, they didn't give us a room. They left food for us near the staircase and we would see [stray] cats sitting around it. We would come home between nine and eleven o'clock at night, after working unpaid OT [overtime], and find the cats sitting around our food. There are no lights, no security, and no discipline."*

16 Jordan has ratified the two core ILO conventions addressing child labour: the Minimum Age Convention, 1973 (No. 138) and the Worst Forms of Child Labour Convention, 1999 (No. 182). Local workers over the age of 16 can legally work in factories, but the tasks they can undertake and the hours they are permitted to work are limited. For migrant workers, the recruitment age is 18.

Workers from the same factory spoke of serious labour rights violations:

- The workers had heard that those who finish their contracts must wait in Jordan for up to two months before being given a return ticket to Bangladesh and that during this waiting period they must work. They claimed that some workers refused to work during this period and that in response the factory deducted the costs of food and accommodation for this period from their end-of-service social security payment, a payment that migrant workers are legally entitled to under Jordanian law.

- One worker said that her passport has been retained by the management since she arrived 16 months earlier. Another worker shared a story about her passport, saying that the factory management had asked for it but she did not give it to them because she was afraid that they would not return it to her. She claimed that the factory management sometimes takes passports from workers who they think might run away under the pretence that the management needs it for administrative purposes.

- Workers said that when they were in Bangladesh they were told that they would earn a monthly wage of around 20,000 BDT ($255), but in fact they make around 15,000 BDT ($191).

- Salary deductions were a recurring theme among workers from this factory. According to one worker:

> ***"[The management] makes many deductions especially if we do not reach our targets. Usually they deduct about 20 [Jordanian] dinars ($28) or more."***

According to another worker at the factory:

> ***"They don't pay us for overtime, and we do not have a choice. If we ever try to say no, they will deduct from our salaries."***

Another worker claimed that she had once had 70 dinars ($100) deducted from her monthly wage, saying:

> ***"I was given a very high target for a style that I have never done before, and when I was not able to meet their requirements they would shout at me in front of everyone... I told the supervisor not to shout at me like this and talk properly. They hit the table and try to scare us. I told him that if I work too fast I cannot maintain the quality, which is why a lot of pieces were damaged. They took 70 dinars from one month's salary. I told them that this is seven days' worth of work. I stayed at home for a week and did not work. I went back to work afterwards"***

- Commenting on workers' ability to end their employment, one worker from the same factory said:

> ***"We spent so much money to come here; we have to earn enough before we go back. If we leave before finishing the contract of course we will not get our social security payment, but the other cost for us would be to have to pay for the return ticket."***

In contrast, Bangladeshi workers employed at some of the other factories reported being satisfied with their working conditions and that the job matched the expectations they had before arriving in Jordan. Another group of recently arrived workers described an altogether different experience regarding the recruitment process, stating that they had felt it had been clear and straightforward. These workers had been given a paper by BOESL to take to Dhaka airport specifying the amount of money that they would have to pay at the airport and making it clear that they should not to pay anything further. This paper was apparently intended to prevent airport and airline staff from trying to extort money from the workers. Workers who were travelling together were also given caps in the same colour to wear so that they could recognize one another.

Another finding from the research is that Bangladeshi garment workers in Jordan do not seem to face many obstacles to staying in close contact with their family members back home. All the workers interviewed reported staying in touch with their families regularly through various technologies – including smartphones, voice over IP internet services, and telephone calling cards – with some workers reporting that they are in daily contact with their families in Bangladesh. While this indicates that workers have easy access to communication channels that could enable them to report attempts at coercion in the workplace if they wished to do so, our research found that many workers who owned and used smartphones and other means of telecommunications still suffered from serious labour rights violations.

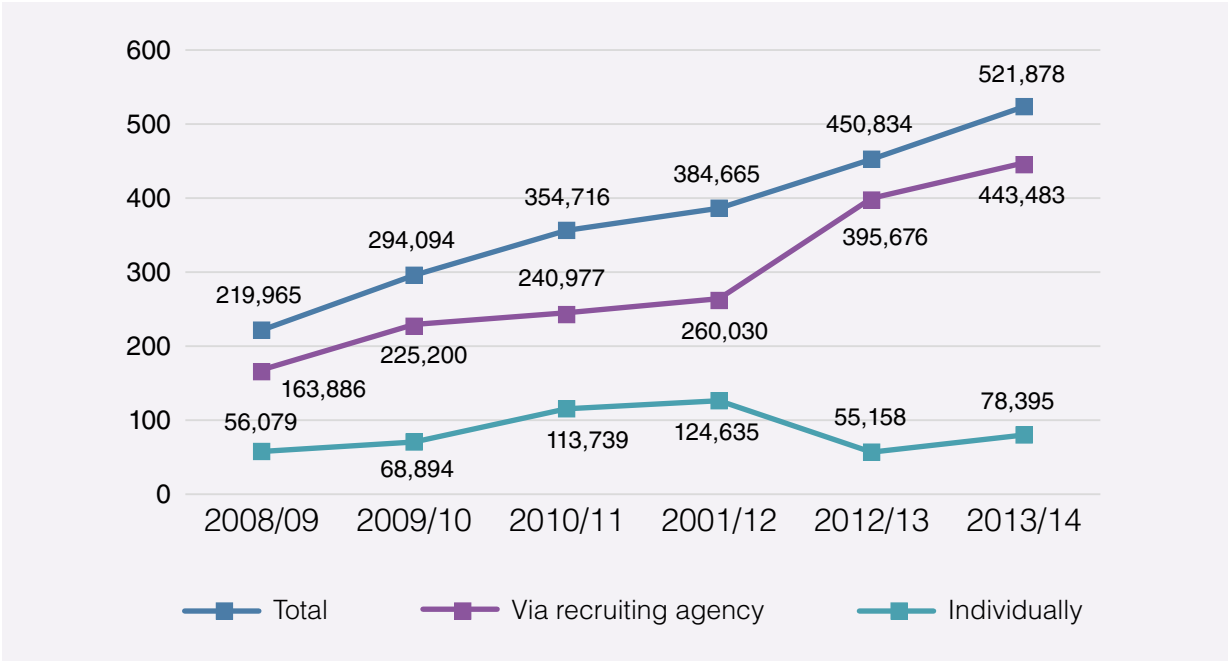
Nepal

In Nepal, migration for employment in the Jordanian apparel sector is facilitated through two main models of recruitment: (1) individual migration, and (2) migration facilitated through private employment agencies (PrEA). As Figure 5 shows, migration via private employment agencies has increased over the past decade as the dominant form of recruitment in Nepal.

The Nepalese recruitment industry is regulated according to the Foreign Employment Act, 2007, Foreign Employment Policy, 2012, and the associated (2008) Rules.[17] According to this regulatory framework, only licensed recruitment agencies may legally recruit workers for overseas employment. The Ministry of Labour and Employment and, under it, the Department of Foreign Employment (DoFE) are the principal government agencies that monitor and regulate the activities of recruiting agencies. In the context of this study, the key reasons given by Nepalese workers for choosing Jordan as a migration destination were: (1) it was recommended by people in their social networks; (2) recruitment fees are low relative to other migration destinations and sectors, and (3) they had seen media advertisement campaigns in Nepal about employment opportunities in Jordan.

The importance of social networks is consistent with findings reported in a recent ILO qualitative study[18] that interviewed representatives of private employment agencies in Nepal about why Nepalese women migrate to Jordan and Lebanon to take jobs as domestic workers. The study cited the following quote from a representative of a private employment agency was a typical description of why Nepalese women decide to migrate for employment:

Figure 5: Total number of labour permits issued yearly, 2008/2009-2013/2014



Source: Government of Nepal, Ministry of Labour and Employment, Department of Foreign Employment, Labour Migration for Employment: A Status Report for Nepal 2013-2014, Kathmandu, Nepal, September 2014.

17 Amendments to this Act are currently being debated.

18 Jones, K., *Recruitment Practices of Domestic Workers from Bangladesh, India and Nepal into Jordan and Lebanon*, (Geneva, ILO, forthcoming).

> *"In Nepal the opportunity of women to work is very limited. But they need money. When they find their co-villager who migrated abroad living a good life then others decide to migrate to improve their life. Also, some women are facing some social challenges at home. They are desperate to get rid of this problem."*

Several female workers interviewed said that they considered employment as a garment worker preferable to domestic work, which they saw as their other migration alternative. One 33-year-old woman had previously worked as a domestic worker in Kuwait and Saudi Arabia for four years and chose to become a migrant garment worker in Jordan because acquaintances told her that the conditions were better than those of domestic workers.

Workers interviewed cited recruitment fees ranging from 10,000 Nepalese Rupees (NPR) ($92) to 28,000 NPR ($259) that they paid to a private employment agency, in addition to modest fees for a medical check-up. Several workers also cited a refundable 700 NPR ($6) training fee. Some workers paid these costs from their own savings or those of their family, while others borrowed the amount. The latter group includes workers who borrowed the money interest-free from relatives and acquaintances as well as workers who stated that they had taken high-interest loans (48-60 per cent per year).

Although none of the Nepalese workers in this study said that he or she paid a recruitment sub-agent, one of the workers interviewed stated that he knows of Nepalese workers who have:

> *"…much more since they are not able to get to [the recruitment agency] as easily. They live far away, so they pay other people to do the paperwork for them. There is someone who paid 45,000 rupees ($423), and one man paid 60,000 rupees ($563). I heard about this a while ago, now most pay 15,000 rupees ($141). People who pay the most are from Tarai, it takes eight or nine hours to get to Kathmandu from there."*

Several interviewees reported contract deception by the recruiter in Nepal. These practices included being told by the Nepalese private employment agency that the length of employment specified in the contract was two years, only to find out later that it was actually three years. This difference in the contracted term of employment is important because the worker must complete the full term in order to be eligible for a paid return ticket to Nepal. Other practices included providing misleading information about wages, a 28-year-old male worker said:

> *"In Nepal, [the private employment agency] said the contract was for two years. In Jordan, it said three years. In Nepal, they hide something about the salary. The agency in Nepal said 300 dollars per month as a wage, here it was 155 dollars per month plus overtime and efficiency bonus. This was not explained in Nepal, but the salary slip in Jordan explains everything. There they said things in general, they told us there was overtime but they didn't tell us how many hours. But in [name of factory removed] we discovered that the work hours are too long."*

Another worker described his experience at Kathmandu airport when the recruitment agency presented him with a contract to sign that was different than what had been verbally communicated to him during the recruitment process:

> *"See how they trap us. Because you are ready with your bags, and you already said goodbye to your family, and you are there in the airport. Then they make you sign for 155 dollars, because it is difficult to go back. Then we have to come"*

A female interviewee described a similar experience. Upon learning about the actual salary at the airport, some of the workers she was travelling with asked for their money and passports back but were told that if they go to Jordan that could make up the difference between the expected salary and actual salary by working extra hours, for which they would receive overtime payment. The worker said she felt she would not be able to get her 15,000 NPR ($141) recruitment fee back from the agency and had no choice but to come to Jordan.

Again, the research revealed a significant amount of variability among factories. In stark contrast to the above experiences, one 23-year-old male worker commented:

> *"It is even better than what I had expected. Every year of work, we get a five dinar raise. So now my salary is 180 to 190 dollars per month. And I get a bonus of around 200-300 dinars ($282-423) per month. I make around 500 dinars ($705) per month. The company is very happy and we are very happy. Some people left because of their own mistakes, for example they were drinking. But as long as we do our job they treat us well."*

As with the Bangladeshi workers, comments from the Nepalese migrant garment workers indicated that it is generally easy to stay in close contact with their family members in Nepal through technologies such as smartphones, voice over IP internet services, and telephone calling cards.

An issue specific to Nepali workers, and one that was repeatedly raised, was the absence of a Nepalese embassy in Jordan. Workers described serious difficulties in renewing their passports while in Jordan with one worker claiming that it took his colleague one year to get his passport renewed via the Nepalese embassy in Saudi Arabia.

Sri Lanka

The key reasons given by Sri Lankan workers for choosing Jordan as a migration destination were: (1) it was recommended by people in their social and/or workplace network who had previously been employed in Jordanian garment factories; (2) recruitment fees are lower than those for other migration destinations; (3) they felt reassured and/or comfortable because of the presence of friends and family currently working in Jordanian garment factories; (4) they saw media advertising campaigns in Sri Lanka about employment opportunities in Jordan; (5) the recruitment agency chose Jordan for them, and (6) they did not encounter opportunities to go to other migration destinations.

Unlike workers from the other two countries, several Sri Lankan workers reported that they had not paid any recruitment fees at all. Others reported paying recruitment fees ranging from $85 to $700, with one worker claiming that some of his co-workers at the factory paid up to $1,500 in recruitment fees, thinking that this covered the costs of the airline ticket when it is actually the factory that pays for this.

Also unique to the Sri Lankan participants we surveyed was that several workers reported they paid part of the recruitment fee in their home country on the understanding that they would pay the remainder to the recruitment agency in instalments once they arrived in Jordan. In some cases, the outstanding balance of the recruitment fee was deducted from their salary by the factory in Jordan. In other cases, some workers reported that they did not abide by this agreement and did not pay the remainder of the fee once they arrived. According to one 31-year-old male worker interviewed for this study, at his factory it is common for workers not to pay the outstanding balance of the recruitment fee. This worker related the story of a Sri Lankan recruitment agent who visited his factory to meet with management and press for payment from the workers of the fees they owed, but the workers still refused to pay him. He noted that some female workers did pay the fees after receiving a letter from the recruitment agent threatening legal action.

Across the Sri Lankan group, some of the workers interviewed paid the recruitment fees from their own savings or from those of their family. Others borrowed the amount from family or acquaintances or mortgaged land that they own to obtain the amount. One 40-year-old woman said that she sold her gold jewellery in order to be able to pay the recruitment fee.

Overall, Sri Lankan migrant workers did not relate incidents of debt bondage, coercive recruitment, or contract deception, with the exception of one male worker who was told in Sri Lanka that his monthly wage would be 320 JODs (Jordanian dinars) ($451) only to find upon arriving in Jordan that it was 190 JODs ($268).

It is worth noting that the difference in salaries between Jordan and Sri Lanka is much smaller than that between Jordan and the other two countries of origin in this study. Several of the Sri Lankan workers in the interviews and focus groups noted this, pointing out that they considered the advantage of working in Jordan not to be the actual income that they earn but rather their ability to save money in Jordan. Because accommodation and living expenses are covered by the factory in Jordan and because workers tend to engage in fewer social activities there than they do in Sri Lanka, they are able to save money for future investments such as building a house in Sri Lanka or starting a small business upon their return.

As is the case with the workers from the other countries, it is fairly easy for Sri Lankan migrant garment workers to stay in close contact with their family members in Sri Lanka through technologies such as smartphones, voice over IP internet services, and telephone calling cards.

Focus groups with Jordanian workers

The focus groups conducted with Jordanian nationals working in the garment factories suggest that jobs in the apparel industry largely correspond to the expectations they had before joining the factory. Moreover, they said that Jordanian workers do not face obstacles to leaving their jobs if they wish to resign.

Most of the Jordanian workers reported that they work to cover their daily living expenses, with some workers reporting personal debt as an additional financial challenge faced by their household. Both men and women workers were not willing to discuss details of their personal debt during the focus group, possibly out of concern for their privacy given the group setting.

Several participants said they felt that migrant workers in the factories are treated differently than Jordanian workers, with some saying the migrants receive better treatment in terms of pay and others saying that they are treated more harshly than the Jordanians.

One male Jordanian worker said that migrant workers are treated like "slaves" because they are shouted at and provided with bad food and accommodation:

> ***"They yell at them and pressure them to reach the target... Jordanian workers do not accept being treated in this way."***

Several Jordanian workers in the focus groups claimed that some factories illegally hire irregular migrant labour. These migrant workers allegedly come to work at the factory after the end of the working shift for Jordanian workers and continue working all night. According to two of the focus group participants, these workers are paid by the hour rather than receiving salaries and do not have their food and accommodation paid for as other migrant workers do. This phenomenon was not mentioned by any of the migrant workers interviewees or focus group participants.

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CHAPTER 4

CONCLUSIONS

The study shows the true heterogeneity of experiences of South Asian migrant workers recruited to work in Jordan's garment industry. In each group interviewed, there were some positive experiences of workers recruited through social networks and official processes who found decent work upon arrival. The key role of the private sector in reinforcing fair recruitment policies and processes was shown by factories, which arranged special briefings to inform workers of the "no-fee charging" policy and to reimburse them as necessary.

On the slip side, workers are sometimes coached by agents to mislead factories into believing they did not paid fees. Most workers from South Asia are paying official, government mandated fees with varying amounts below USD 319 (for Nepal and Bangladesh) or below USD 700 for Sri Lanka without knowing anything about what those fees cover. Workers from rural or isolated communities and male workers appear to pay the highest amount of fees. In the case of rural or young workers, the fees often cover the cost of an informal agent, bribery or falsification of records. Fees are paid in different patterns – in Nepal and Sri Lanka fees are primarily paid upfront in countries of origin, whereas in Sri Lanka many workers pay fees with a down-payment followed by instalments.

One issue which the study highlights is the large gap between International Labour Standards on the payment of recruitment fees and migration laws in many countries of origin. While ILO Private Employment Agencies Convention, 1997 (No. 181) and the global guidelines on fair recruitment state that *"no recruitment fees or related costs should be charged to, or otherwise borne by, workers or jobseekers"* (Paragraph 7 of the General

Principles and Operational Guidelines for Fair Recruitment) most countries in Asia still allow their workers to be charged fees.

While fees are often capped – the payment still provides an entry point for deception and debt bondage. This situation is compounded when combined with other indicators of forced labour including confiscated passports, contract deception and contract substitution. As the interviewees from all country groups stated Jordan was amongst the "cheapest" countries for recruitment fees, one can only begin to imagine the scale of the debt paid by workers to work in more "expensive" countries.

This disparity between international standards and those found in the Jordanian Garment Sector should be taken up by the Government of Jordan and representatives from key countries of origin. It should also be a subject for discussion between the Jordan Garments, Accessories, and Textiles Exporters' Association (JGATE) and the Association of Owners of Factories, Workshops and Garments (AOWFWG), along with the General Trade Union of Workers in Textile, Garment and Clothing Industries for inclusion in the industry's Unified Contract.

Finally, brands and retailers sourcing from Jordan should also take a unified approach to reviewing the policies and procedures of their factories in recruiting migrant workers and ensuring they are in line with the General Principles and Operational Guidelines for Fair Recruitment.

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APPENDIX
INTERVIEW GUIDE

Start with the presentation of project, the interviewers and obtain informed consent.

☑ *Consent obtained*

Date of Interview:
Interviewers:
Interview Language:
Name of Interpreter:
Place of Interview:
Case Number:

A. Profile of migrant worker

Sex:	
Nationality:	
Age at the time of the interview:	
Marital status:	
No. of children:	
Place of origin & living in country of origin (city name or district; rural/urban):	
No. of persons in the household (no. of adults and no. of children):	
Education level/ literacy:	
Are other members of your family working overseas? Where? Doing what?	
Activity/job before migrating:	

B. Prior to the migration process

1. Is this your first time working abroad/outside your place of origin? If no, can you please tell us the other places you've worked in and when and doing what? Now, let's talk about this current migration experience.

2. Why did you decide to leave your place/country? What were your main motivations?

3. Whose idea was it for you to come here?

4. Why did you come to Jordan rather than somewhere else?

5. Why did you come to work in a garment factory?

6. How old were you when you arrived in Jordan?

7. Did you have previous employers in Jordan before this one? When? Why did you leave them?

C. Recruitment and travel

8. What is your current job?

9. How did you find this current job? Did someone help you find your job? A friend? A local/informal agent? A private recruitment agency in your home country? Another system?

10. What did you have to pay for to get this job and come to Jordan? To whom? (Double check currency. Probe for: passport, travel visa, government taxes and fees, medical checks, pre-departure orientation/training and accommodation, job-related/skills training and accommodation, fee to recruitment broker/agency, other intermediary, travel costs in origin country, bribes to officials, cash costs on arrival).

11. Did you pay for your flight to Jordan yourself? If no, who paid for it?

12. Did you pay for your work visa yourself? If no, who paid for it?

13. Did you pay for your residence permit yourself? If no, who paid for it?

14. Did you or someone in your immediate have to borrow money and if so, from whom, and how much? What for? Did you have terms of reimbursement clearly defined and which you understood?

15. How do you pay this debt back? Do you pay interest on the sum borrowed? Do you get a written receipt every time you reimburse part of it? Has it already been repaid in full? If so, when? If not, by when do you expect to have repaid it?

16. Did you sign an employment contract before leaving your home country? Did you understand the terms? Were the terms explained to you? By whom? Where did you sign it?

17. Did anyone from the factory ask you if you have paid recruitment fees?

18. Did anything happen during recruitment that you were not happy about? By whom and by what means? (Probe for: hand over passport, sexual abuse, threats of violence, etc.)

19. Did someone meet you upon arrival? Who?

20. Did anything happen during the journey that you were not happy about? By whom and by what means? (Probe for: hand over passport, sexual abuse, threats of violence, etc.)

D. Work experience

21. Did you sign (another) employment contract when you arrived in Jordan? Was it different from the one you signed in your home country? If so, in what respect?

	WAS PROMISED	WHAT I GOT
Location		
Nature of the job		
Type of employer		
Amount of earnings- Means of payment- Possibility of opening a bank account- Regularity		
Number of hours of work		
Days off		
Annual leave		
Living conditions		
Health insurance		
Social benefits		
Legal status		
Other		

22. If no, did you have an oral agreement about the job? With whom did you have that agreement? Did they properly explain to you the terms and conditions?

23. Did the work correspond to what you were promised, for example in terms of the location of the job, how much you would be paid, the type of work you would be doing, working hours, pressure? (Other prompts to use include: days off, living conditions, healthcare.)

24. Who keeps your passport/other key documents? Did you agree to give these documents? Can you get them back whenever you want to?

25. Have you ever wanted to quit and go home? If so, what did you do? Did you try to leave and how?

26. Were you at any point in time required by your employer to work overtime or do something that you did not like?

27. Do you contact your family? If so, how and how often? If not, why not?

28. Are you able to send money back to your family and friends and on average how often? To what extent do your families rely on your remittances? How does this make you feel?

29. If you were having serious problems, who would you approach for support? Why? Would you pay them?

E. Additional interview data and remarks

[END OF INTERVIEW]

Fundamental Principles and Rights at Work Branch
(FUNDAMENTALS)

International Labour Organization
4 route des Morillons
CH-1211 Geneva 22 – Switzerland
Tel.: +41 (0) 22 799 61 11
Fax: +41 (0) 22 798 86 95

fundamentals@ilo.org — www.ilo.org/fundamentals

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